

## 25STCV10972 25STCV10972

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-20

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Case Number: 25STCV10972 Hearing Date: July 20, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV10972

CASSANDRE

URSU, et al. vs GEORGE P. KOLOVOS AS TRUSTEE OF THE KOLOVOS TRUST DATED JULY 2, 1986, AS AMENDED, et al.

July

20, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR.

## RULING:

The Court grants the Petition,  
and will complete, sign and file the Proposed Form Order received on June 12,  
2026.

Plaintiff to give notice.

## I.

### BACKGROUND

On June 12, 2026, the  
minor's parent and Guardian ad Litem petitioned for approval of a minor's  
compromise, following a Notice of Settlement filed on April 14, 2026.

## II.

### LEGAL STANDARD

Petitions for approval of  
minors' compromises shall fully disclose all information that has any bearing  
on the compromises' reasonableness. (*Chui v. Chui* (2022) 75 Cal.App.5th  
873, 899 [citing Cal. Rules of Court, rule 7.950].)

A petition for court  
approval of a compromise under Code of Civil Procedure section 372 must comply  
with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules  
of Court, rule 3.1384(a).) Some of the Probate Code and the Code of Civil Procedure  
apply to compromises as to minors' claims. (See Cal. Rules of Court, rule  
7.950.) In large part, the Local Rules incorporate by reference the California  
Rules of Court and statutory provisions. (See Super. Ct. LA County, Local  
Rules, rule 4.115 et seq.)

Courts may consider  
evidence presented and determine reasonable amounts to be paid to attorneys  
representing minors. (*Curtis v. Fagan*  
(2000) 82 Cal.App.4th 270, 273; *Padilla v. McClellan* (2001) 93  
Cal.App.4th 1100, 1106.) In cases involving the compromise of a pending action  
of a minor, the court must determine an award of attorney fees under California  
Rules of Court, Rule 7.955. (*Gonzalez*  
*v. Chen* (2011) 197 Cal.App.4th 881, 888.)

III.

### ANALYSIS

Reportedly, the minor,  
born

June 25, 2020, resided at 11848 Dorothy St., Unit 3, Los Angeles, until  
constructive eviction around November 2024. The property suffered from  
persistent water damage and toxic mold growth, primarily in the minor's  
bedroom.

The balance of settlement  
proceeds for the minor would be \$56,218.79, after deducting attorneys' fees (\$22,089.68),  
medical expenses (\$24.86) and other expenses (\$2,506.35). The balance would be transferred  
to the trustee of a trust and deposited with Fidelity Investments.

Most importantly, courts  
must decide whether to approve a compromise by determining if petitioners, such  
as guardians, are acting in the best interests of minors or incompetent  
persons. (E.g., CCP §372(a); *Scruton v. Korean Air Lines Co.* (1995) 39  
Cal.App.4th 1596, 1603-07.) "[T]he protective role the court generally assumes  
in cases involving minors, [is] a role to assure that whatever is done is in  
the minor's best interests.... [I]ts  
primary concern is whether the compromise is sufficient to provide for the  
minor's injuries, care and treatment." (Goldberg  
v. Sup. Ct. (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in  
approving petitions for minors' compromises, and ordering distributions, and  
local court policies, must be applied in the best interests of minors, in a  
case-by-case method, tailored to the circumstances. (*Christensen v. Sup. Ct.* (1987) 193  
Cal.App.3d 139, 142-44.)

The Court finds that the  
settlement is the best interests of the minor, especially considering the  
above-average amount recovered as compared to like habitability cases where the  
claimant has recovered completely from the effects of the injuries.

IV.

### CONCLUSION

The Court grants the Petition,

for reasons set forth above.